

PLSC 476: Empirical Legal Studies

Christopher Zorn

September 11, 2025

Inherent and Operational Goals

14 The Puzzle of Judicial Behavior

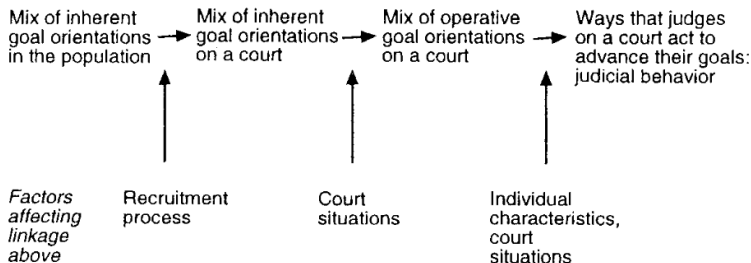


Fig. 1.1. A framework for analysis of judicial behavior. (Terminology is explained in the text.)

A Goal Typology

TABLE 1.1. A Partial Typology of Possible Goals for Judges

- I. *Content of Legal Policy*
 - Accurate interpretation of the law ("legal accuracy")
 - Clear and consistent interpretation of the law ("legal clarity")
 - Good policy as gauged by the judge's policy preferences ("good policy")
 - II. *Personal Standing with Court Audiences*
 - Popularity and respect in the legal community
 - Popularity and respect in the community as a whole
 - Power outside the court
 - III. *Career*
 - Continued tenure in the current judicial position
 - Promotion to a higher court
 - Securing attractive nonjudicial positions
 - IV. *Life on the Court*
 - Good relations with other judges and with participants in the courts who have other positions
 - Power within the court
 - Limited work loads
 - Court resources
 - V. *Standard of Living*
 - Personal income
 - Personal comfort
-